

SENATE No.

The Commonwealth of Massachusetts

PRESENTED BY:

Barry R. Finegold

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act promoting the safety of dogs in the custody of kennels.

PETITION OF:

NAME:

Barry R. Finegold

DISTRICT/ADDRESS:

Second Essex and Middlesex

SENATE No.

By Mr. Finegold, a petition (accompanied by bill) (subject to Joint Rule 12) of Barry R. Finegold for legislation to promote the safety of dogs in the custody of kennels. Municipalities and Regional Government.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act promoting the safety of dogs in the custody of kennels.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 137 of chapter 140 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after subsection (d) the following new
3 subsection:-

4 (e) A keeper of a dog may, while in a licensed kennel, remove an affixed tag if the dog
5 has another means of identification including, but not limited to, a microchip or tattoo; provided,
6 however, that proof of licensure by means of tag, electronic record, certificate or other verifiable
7 method shall be accessible and available onsite at the kennel. The licensed kennel or dog keeper
8 shall maintain access to a microchip reader capable of reading common microchip formats if
9 microchips are being used for identification purposes in lieu of a tag for any dogs onsite.

10 SECTION 2. Subsection (b) of section 145B of said chapter 140, as so appearing, is
11 hereby amended by inserting at the end thereof the following words:- A keeper of a dog may
12 choose, while in a licensed kennel, to not affix the tag if the dog has another means of

13 identification including, but not limited to, a microchip or tattoo; provided, however, that the
14 certificate shall be made accessible and onsite. The licensed kennel or dog keeper shall maintain
15 access to a microchip reader capable of reading common microchip formats if microchips are
16 being used for identification purposes in lieu of a tag for any dogs onsite.

17 SECTION 3. Section 85A of chapter 272 of the General Laws, as so appearing, is hereby
18 amended by striking out the word “dollars.” and inserting in place thereof the following words:-
19 dollars; provided, however, that a keeper of a dog may, while in a licensed kennel, remove a
20 license tag of the dog in accordance with section 137 or 145B of chapter 140, and such removal
21 shall not constitute a violation of this section.